

T.293/07, T.688/14, T.259/15). The skilled person would prefer to verify whether the potential solution he had conceived worked, rather than abandon the project because success was not certain ("try and see" approach).

A "try and see" situation was considered to have occurred if the skilled person, in view of the teaching in the prior art, had already clearly envisaged a group of compounds or a compound and then determined by routine tests whether such compound/s had the desired effect (T.889/02, T.542/03, T.1241/03, T.1599/06, T.1364/08). See also in this chapter I.D.9.21.7. "Enhanced effect".

In T.1396/06 the board held that, in spite of the understandable uncertainties which always characterise biological experiments, the skilled person would have had no reason to adopt a sceptical attitude in the case in hand. He would have had either some expectations of success or, at worst, no particular expectations of any sort, but only a "try and see" attitude, which does not equate with an absence of a reasonable expectation of success (see also T.759/03).

In T.293/07 the board stated that the testing of humans could not be considered to represent known routine tests and accordingly the skilled person was not in a "try and see" situation. In T.847/07 the board considered it questionable whether the skilled person would adopt a "try and see" attitude at all in cases where extensive in vivo animal and ultimately human testing would be necessary in order to determine whether or not a compound has a certain property. See also T.1545/08. In T.1011/17 the board found that more extensive studies would have been required to confirm the efficacy of bosutinib in human leukemia patients with imatinib-resistant cancer cells carrying the F317L mutation. In this context, the person skilled in the art would no longer have been in a "try-and-see" situation but would have required a reasonable expectation of success as an incentive for moving to further much more extensive and larger studies in a clinical setting.

In T.62/16 the board pointed out that the skilled person assessing the possibility of starting a clinical study with a product that had never been tested on humans would have a conservative attitude. During the development of a new pharmaceutical product for use in humans there would always be the necessity, at some point, to make the step from experimentation with animal models to experimentation with humans. This step would necessarily involve some degree of uncertainty. Whether or not the skilled person would decide to start a clinical study with the product in question was a matter that had to be decided in the circumstances of each case.

In T.259/15 the board held that the case law did not support the conclusion that the skilled person would systematically avoid a "try-and-see" approach whenever testing on human patients was involved, regardless of the circumstances of the case. In the circumstances of the case in hand, the board considered that the skilled person would test the device in question (a buprenorphine transdermal patch) on human subjects despite the uncertainties as to the maximum duration of application.

In the light of the closest prior art the board saw the technical problem to be solved in T.886/91 in the exact identification and characterisation of DNA sequences of HVB

genome subtype adyw. The board pointed out that the situation in T. 886/91 could not be compared with the one in T. 223/92 and T. 500/91, where production of a partially known protein in a recombinant-DNA system was achieved and considered inventive on the basis of the fact that, in the specific circumstances of those cases, there was no realistic expectation of success. In the case in point the closest prior art had already disclosed the cloning and expression of the HBV genome subtype adyw. The identification and characterisation of the claimed specific sequences of the same genome involved for the skilled person nothing more than the performance of experimental work by routine means in connection with the normal practice of filling gaps in knowledge by the application of existing knowledge.

In T. 688/14 appellant I argued that the skilled person would have adopted a sceptical attitude and not a "try and see" attitude. The board disagreed. Document 8 not only informed the skilled person of the presence of several problems when trying the method in question but it also provided means and measures to overcome them. Indeed, these problems were already known in the art and means and measures to solve them were also provided there. There was no reason for a person skilled in the art to ignore all the information to hand and select the worst possible known system or method when facing a "try and see" situation. The board held that it was worth noting that, in the case in hand, the skilled person was not looking for an improvement or a surprisingly advantageous effect, but only for an alternative method.

In T. 1715/15 the board found that the person skilled in the art could be both regarded as being cautious and of a conservative attitude (see I.D.8.1.3) but also tasked with the furthering of the prior art by routine adaptations or trials (see also T. 688/14, T. 2697/16)

In T. 2015/20 the board was of the opinion that the defined subject-matter of claim 1 was not the obvious result of routine experimentation, but rather represented the unexpected outcome of a study for finding an aciclovir dose for treatment of a chronic disease which combined optimised effectiveness with the absence of side effects. The board thus concluded that the subject-matter of claim 1 involved an inventive step. See also chapter I.D.10.8 "Surprising effect – bonus effect".

Decisions T. 455/91 (OJ 1995, 684), T. 412/93, T. 915/93, T. 63/94, T. 856/94, T. 91/98, T. 111/00 and T. 948/01 also consider this topic.

8. Skilled person

8.1. Definition of the skilled person

8.1.1 Definition

According to the case law of the boards of appeal, **the person skilled in the art** should be presumed to be an experienced practitioner who has average knowledge and abilities and is aware of what was common general knowledge in the relevant art concerned at a particular time (average skilled person). The skilled person should also be presumed to have had access to everything in the **state of the art**, in particular the documents cited in

the search report, and to have had at his disposal the normal means and capacity for routine work and experimentation (Guidelines G-VII, 3 – March 2022 version). The skilled person will be an expert in a **technical field** (T 641/00, OJ 2003, 352). T 39/93 (OJ 1997, 134) explained that, whilst generally accepted definitions of the notional "person skilled in the art" did not always use identical language to define the qualities of such a person, they had one thing in common, namely that none of them suggested the skilled person was possessed of any inventive capability. It was the presence of such capability in the inventor which set him apart from the notional skilled person.

In T 1462/14 the board noted that the skilled person was a notional entity that had been elaborated on by the case law of the boards of appeal in order to serve as an objective reference when deciding on various issues under the EPC. This notional person could not be equated with any real person in the technical field of the invention. Neither an inventor, nor an opponent, nor an examiner, nor a member of a board of appeal, could be equated with the skilled person. This also applied to a representative.

With regard to the definition of the skilled person, the board in T 26/98 (confirmed in T 1523/11) summarised the following principles which are generally applied by the boards of appeal: if the problem prompts the skilled person to seek its solution in another technical field, the specialist in that field is the person qualified to solve the problem. The assessment of whether the solution involves an inventive step must therefore be based on that specialist's knowledge and ability (see decision T 32/81, OJ 1982, 225; T 141/87; T 604/89 of 15 November 1990; T 321/92). The skilled person can be expected to look for suggestions in neighbouring fields if the same or similar problems arise in such fields. The skilled person can be expected to look for suggestions in a general technical field if he is aware of such fields. In advanced technical fields the competent "skilled person" could be taken to be a team of experts from the relevant technical branches. Solutions to general technical problems in non-specific (general) fields are considered to form part of the general technical knowledge.

In T 1464/05 the board stated that, according to established doctrine, the notional person skilled in the art referred to in Art. 56 EPC 1973 was assumed to be aware of the totality of the prior art pertinent to the relevant area of technology and in particular of everything made available to the public within the meaning of Art. 54(2) EPC 1973. The different means by which the state of the art was made available to the public ranked equally with each other. The notional skilled person was supposed to be aware of all the features of the prior use in suit that had been made available to the public. Thus, although it would be unrealistic to assume that all skilled members of the interested public would have been aware of the features made available to the public by the prior use, the notion of the skilled person under Art. 56 EPC 1973 ensured that any obvious development or application of the features of the public prior use by any particular skilled member of the interested public who had gained information on the features made available to the public by the prior use was treated under Art. 56 EPC 1973 as such, i.e. as obvious with regard to the state of the art, irrespective of whether or not other members of the interested public had actually become aware of the features of the prior use.

In T. 1030/06 the application related to a system and method for securely buffering content. The board considered that the skilled person was a person of ordinary skill in the art which meant not only having access to the state of the art and common general knowledge in the field, but also the capability to perform routine work and experimentation. Thus, the skilled person could be expected to seek out solutions and make choices to try to solve design problems that crop up.

According to the board in T. 1761/12, the position that the problem and solution approach developed through the boards' case law did not allow for considering whether or not it was necessary to retain features not differing from the closest prior art was too formalistic. Over and above the lack of imagination widely attributed to the skilled person, this position also seemed to deny them the capacity to draw conclusions from information obtained direct from the prior art.

According to T. 422/93 (OJ 1997, 25), when examining for inventive step using the "problem and solution approach", the starting point for defining the appropriate skilled person was the technical problem to be solved on the basis of what the prior art disclosed, irrespective of any other definition of the skilled person suggested in the contested patent. Since the technical problem addressed by an invention had to be so formulated as not to anticipate the solution, the skilled person to be considered could not be the appropriate expert in the technical field to which the proposed solution belonged if this technical field was different to the one considered when formulating the technical problem. Nor did the appropriate skilled person's basic knowledge include that of a specialist in the different technical field to which the proposed solution belonged, if the closest prior art gave no indication that the solution was to be sought in this other technical field.

In T. 1450/16 the board's view, following the conclusions drawn in T. 422/93, was that the person skilled in the art within the meaning of Art. 56 EPC entered the stage only when the objective technical problem had already been formulated. Thus, the skilled person under Art. 56 EPC was the person qualified to solve the established objective technical problem (see also e.g. T. 32/81, OJ 1982, 225; T. 26/98; T. 1523/11) and not necessarily the person versed in the field of the underlying application or in the field of the selected closest prior art.

In T. 25/13 the board stated that opponents were essentially free to choose the starting point for assessment (here D4), but their choice then had implications for the technical knowledge of the relevant skilled person. The board concluded that there were two options: either to take the skilled person in the field of the invention (motor vehicle) – who would never have consulted D4 (tumble dryers) because it was from a totally different field – or to take D4 as the starting point, in which case the skilled person's field would be domestic appliances and the solution would not be obvious to him.

8.1.2 Competent skilled person – group of people as "skilled person"

Sometimes the "skilled person" may be a group of people, such as a research or production team. For the purposes of Art. 56 EPC 1973, the person skilled in the art was normally not assumed to be aware of patent or technical literature in a remote technical

field. In appropriate circumstances, however, the knowledge of a team consisting of persons having different areas of expertise could be taken into account (T.141/87, T.99/89, T.26/98). This would be the case in particular if an expert in one particular field was appropriate for solving one part of the problem, while for another part one would need to look to another expert in a different area (T.986/96).

In T.15/15 the board held that where a new technology was about to spread into a traditional field, it was common practice to group people from both technical fields into a development team. The board was thus of the opinion that the skilled person in the case in hand consisted of a team of an orthodontist and an expert in CAD/CAM technology. This conclusion was drawn from the situation in the field before the filing/priority date, without considering any specific invention.

In T.164/92 (OJ 1995, 305, Corr. 387) it was observed that sometimes the average skilled person in electronics, particularly if he did not have an adequate knowledge of programming languages himself, might be expected to consult a computer programmer if a publication contained sufficient indications that further details of the facts described therein were to be found in a program listing attached as an annex thereto.

In T.147/02 the board observed that the skilled person in the field of drainage systems for tunnels, flood barriers, dams and hydro-electric installations, was typically an engineer or architect in the civil engineering sector who drew up plans and supervised the building work, frequently working in a team with other specialists (T.460/87, T.99/89).

Further comments on the concept of the "team of experts" are to be found in the following decisions: T.57/86, T.222/86 (in advanced laser technology, the "skilled person" as a production team of three experts in physics, electronics and chemistry respectively), T.141/87, T.295/88, T.424/90 (consideration that in real life the semiconductor expert would consult a plasma specialist), T.825/93, T.2/94, T.402/95 and T.986/96 (team consisting of a first expert in the field of mail processing and a second expert acquainted with information in the field of weighing) and T.2192/10 (team comprising a machine designer and an actuator technician).

8.1.3 Definition of the person skilled in the art in the field of biotechnology

The person skilled in the art in the field of biotechnology is well defined by the case law of the boards of appeal. His attitude is considered to be conservative. He would never go against an established prejudice, nor try to enter unpredictable areas nor take incalculable risks. The notional skilled person would perform a transfer of technology from a neighbouring field to his specific field of interest, if this transfer involved routine experimental work comprising only routine trials (T.455/91, OJ 1995, 684; T.500/91; T.387/94; T.441/93; T.1102/00).

In T.60/89 (OJ 1992, 268) the board took the view that the skilled person in genetic engineering in 1978 could not be defined as a Nobel prize winner, even if a number of scientists working in this field at that time actually were awarded that prize. Rather he should be assumed to be a scientist (or team of scientists) working as a teacher or